

SOFTWARE SERVICES AGREEMENT

This Software Services Agreement ("Agreement") is entered into as of January 1, 2025, between Acme Corp, a Delaware corporation ("Client"), and TechVendor Inc., a California corporation ("Vendor").

1. SERVICES

1.1 Vendor will provide SaaS platform access and professional services as described in any Statement of Work attached hereto. Vendor makes no warranty as to uptime, availability, or response time for the services provided.

2. PAYMENT TERMS

2.1 Client shall pay Vendor within a reasonable time after receipt of each invoice.

Payment shall be made in whatever currency Vendor designates. No interest or late fees apply to overdue balances.

3. PRICE CHANGES

3.1 Vendor reserves the right to change pricing at any time, in its sole and absolute discretion, upon notice to Client. Client's continued use of the services constitutes acceptance of the new pricing.

4. TERM AND TERMINATION

4.1 This Agreement commences on the Effective Date and continues until terminated by either party upon thirty (30) days written notice. There is no cure period for breach.

Upon termination, all fees owed to Vendor become immediately due and payable.

5. INDEMNIFICATION

5.1 Client shall indemnify, defend, and hold harmless Vendor and its affiliates, officers, directors, employees, and agents from and against any and all claims, liabilities, damages,

losses, costs, and expenses (including reasonable attorneys' fees) arising out of or related to Client's use of the services. There is no cap on Client's indemnification obligations under this section.

6. LIMITATION OF LIABILITY

6.1 IN NO EVENT SHALL VENDOR BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES. VENDOR'S TOTAL LIABILITY SHALL NOT EXCEED THE FEES PAID IN THE PRIOR THREE (3) MONTHS. THIS LIMITATION APPLIES TO VENDOR ONLY AND NOT TO CLIENT.

7. DATA PROCESSING AND PRIVACY

7.1 Vendor may process personal data on behalf of Client. Vendor agrees to implement commercially reasonable security measures to protect personal data. In the event of a security breach, Vendor will notify Client within a commercially reasonable time.

7.2 Vendor may transfer personal data internationally as required for service delivery. No reference is made to Standard Contractual Clauses or adequacy decisions.

7.3 Personal data will be retained by Vendor for as long as required by applicable law.

7.4 Vendor may engage subprocessors at its discretion without prior notice to Client.

8. AUTO-RENEWAL

8.1 Unless either party provides written notice of non-renewal, this Agreement will automatically renew for successive one-year terms. The notice period for opting out of auto-renewal is not specified.

9. GOVERNING LAW

9.1 This Agreement shall be governed by the laws of the State of Delaware.

10. FORCE MAJEURE

10.1 Neither party shall be liable for failure to perform due to causes beyond its reasonable control including but not limited to acts of God, government actions, labor disputes, or any other event Vendor deems appropriate.

11. ASSIGNMENT

11.1 Either party may assign this Agreement or any rights hereunder to any third party without the consent of the other party.

12. LIQUIDATED DAMAGES

12.1 In the event of any breach by Client, Client shall pay Vendor a liquidated damages amount equal to three times the annual contract value regardless of actual damages suffered by Vendor.

13. CCPA/DATA PRIVACY COMPLIANCE

13.1 Vendor acknowledges processing personal information on behalf of Client. No certification is provided that Vendor will not sell or share personal information. Vendor is not explicitly designated as a "Service Provider" under the CCPA.

14. ENTIRE AGREEMENT

14.1 This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements and understandings relating to its subject matter.